

4. Monetary Sanctions

The Court finds that both the hourly rate charged by Meteor's counsel, and the amount of time spent in preparing the motion are reasonable. The Court further finds that the hourly rate, while at the upper limit, is consistent with those typically charged in the community for similar work. The Court further finds that Meteor is entitled to recoup its filing fee for the motion and the costs incurred in retaining a court reporter for the noticed deposition.

Based on the foregoing, the request for monetary sanctions is GRANTED.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND
INTERROGATORIES

TENTATIVE RULING: The matter is CONTINUED to September 1, 2026, at 8:30 a.m. in Dept B to allow the parties to address the following items:

- 1) Federal shall submit a supplemental declaration to confirm the parties' agreement to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. The supplemental declaration shall be served and filed no later than August 25, 2026.
- 2) The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. Federal shall file a supplemental declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion was made. The supplemental declaration shall be served and filed no later than August 25, 2026. The parties are further directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties' meet and confer efforts.
- 3) The parties are also encouraged to meet and confer regarding the appointment of a discovery referee pursuant to Code of Civil Procedure, section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company ("Federal") moves, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310,³ to compel Plaintiffs' further responses, within 30 days, to Federal's Special Interrogatories (Set One) Nos. 9-12 and 14-16; Form Interrogatories (Set One) Nos. 9.2, 12.3, 12.4, 12.6, and 50.3; Requests for Production (Set One) Nos. 1-7, 9-15,

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

17, 18, 22, 23-25, 27-29, 31-41, 43-47, 49, 50; and Requests for Production (Set Two) No. 47 propounded on Plaintiff Thomas Pollock and the corresponding requests propounded on Plaintiff Eileen Tabios (collectively, “Subject Discovery”).

Federal failed to provide adequate notice of the hearing date. (See §§ 1005, subd. (b) and 1010.6, subd. (a)(3)(B).) However, Plaintiffs waived any objection to the defect by failing to raise such objection and by submitting opposition papers addressing the substance of Federal’s motion. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697, quoting *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930.)

B. JURISDICTIONAL ISSUE

Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days (extended if served by mail, overnight delivery, fax or electronically) after service of a verified response. (§§ 2030.300, subd. (c), 2031.310, subd. (c); *id.*, § 1010.6, subd. (a)(4) [extension of two court days for electronic service].) Otherwise, the demanding party waives the right to compel any further response. (*Id.*, § 2031.310, subd. (c); see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.)

The verified responses to the Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One) were served January 26 and 27, 2026. (See Declaration of Brittany Fowler (“Fowler Decl.”), ¶¶ 8-13.) Thus, unless an extension was agreed to, the deadline to move to compel a further response thereon was approximately March 12 and 13, 2026. However, the present motion was filed July 17, 2026.⁴

The Court notes that the Motion challenges, in part, the sufficiency of the Set One verifications. While deficient verifications render responses (other than objection-only responses) tantamount to no response at all (in which case a motion to compel is not subject to the 45-day deadline under sections 2030.290 or 2031.300), the Motion is not brought under sections 2030.290 or 2031.300 to compel a response where none was given. Moreover, certain of the responses which Federal challenges by the Motion are objection-only responses, and therefore, the 45-day deadline still applies even with a deficient verification. Based on the foregoing, the fact that the Motion challenges the Set One verifications does not outright obviate the need to comply with the 45-day deadline.

While the Fowler Decl. attaches meet and confer communications between the parties which tend to support that the parties agreed to extend the 45-day deadline with respect to the Set One discovery requests, there is nothing before the Court expressly confirming that and it is not the Court’s obligation to comb through the record for factual and legal support that a party has failed to identify or provide. Even though this issue was not raised in Opposition, the 45-day deadline is mandatory and “jurisdictional,” i.e., the Court has no authority to grant a late motion. (See *Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1410 [“We do not believe the 45-day limitation is ‘jurisdictional’ in the fundamental sense, but is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.”].)

⁴ The Fowler Decl. was not filed until July 21, 2026.

Based on the foregoing, Federal is ordered to file and serve, not later than August 25, 2026, a supplemental declaration which confirms the parties agreed to extend the motion to compel deadline to July 17, 2026 as to each discovery request for which further responses are sought. Going forward, this jurisdictional fact should be clearly set out in a declaration accompanying any future discovery motions to which the 45-day deadline applies.

C. MEET AND CONFER DECLARATION

“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” (§ 2016.040, subd. (a). Emphasis added.) The addition of “either in person, by telephone, or by videoconference” became effective January 1, 2026. (See 2025 Cal. Legis. Serv. Ch. 200 (A.B. 1521) (WEST).)

Federal’s meet and confer declaration simply states that counsel met and conferred on certain dates in compliance with section 2016.040 and attaches written correspondence between counsel. (Fowler Decl., ¶¶ 2-7, Exhs. 2-5; see also Notice of Motion, 2:14-15.) This fails to comply with section 2016.040.

Moreover, from a review of the briefing, it appears to the Court that counsels’ meet and confer efforts have been perfunctory. “It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The parties are directed to redouble those efforts in light of the following. Federal shall file a supplemental declaration, no later than August 25, 2026, stating facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion took place.

Federal first contends that Plaintiffs’ responses are deficient because Plaintiffs unilaterally limited their agreement to produce documents in certain ways, without specifying which documents they are withholding. (Mem., 2:9-11, 4:23-6:24, 12:11-13:2.) Plaintiffs contend that their responses reflect a good faith, reasonable, and cooperative attempt to provide substantive responses to overbroad demands, and that the substance of their responses signals that Plaintiffs are construing the requests according to their reasonable and customary scope, rather than the limitless scope as defined by Federal. Plaintiffs further assert that they expressly represented, during the meet and confer process, that they are not withholding any documents Defendant would otherwise be entitled to under the Code. (Opp., 3:3-6.)

Federal fails to describe with sufficient specificity the precise information or materials to which it contends it is entitled by way of these requests, but which Plaintiffs have failed to produce. Furthermore, Plaintiffs had proposed that Federal strike a portion of the definition that made the term “relating to” overbroad, which would then allow Plaintiffs to remove the

challenged qualifiers in response; however, Federal declined that proposal and instead brought the present motion. Federal does not meaningfully respond to its obstinance regarding the definition of “relating to.” These circumstances appear to the Court to be entirely resolvable between the parties without Court intervention.

Federal next contends that, in response to certain Requests for Documents (Mem., 3:24-4:7, 6:26-7:1, 7:23-8:9, 10:8-19, 11:27-12:4), Plaintiffs objected and refused to produce all responsive documents. First, Plaintiffs contend that, for many of the requests, they did not refuse to produce responsive documents and have expressly represented that they are withholding nothing to which Federal is entitled under the Code. Moreover, Plaintiffs’ objection to many of these Requests was based on Federal’s definition of “relating to.” Federal contends that, in meet and confer, Federal agreed to use Plaintiffs’ definition of “relating to,” but that Plaintiffs did not respond to that proposal. (Mem. 4:4-6.) Plaintiffs refute this in Opposition, stating that they cannot be faulted with failing to respond to this proposal, when they had made the same proposal earlier and were met with refusal. As both parties appear to agree on the proposal, it is clear to the Court that this is an area the parties should be able to work out without motion practice.

Plaintiffs further objected on grounds that responsive documents had already been provided, as this underlying dispute between the parties has an extensive history, including prior and concurrent litigation. To the extent Federal seeks additional documents outside of the scope already in Federal’s possession, it appears Plaintiffs are willing to meet and confer regarding that scope. (See Opp., 9:22-10:2.) Finally, Plaintiffs asserted objections to certain requests on the grounds that they do not seek damages related to the subject thereof and that, in any event, Federal already has responsive documents in its possession, yet Federal still seeks responsive documents on an attenuated theory that the documents might show Plaintiffs’ state of mind as to their property in general.

Federal further contends that Plaintiffs’ interrogatory responses are improper because they point to unspecified documents and fail to supply complete, narrative answers. (Mem. 13:3-14:12.) Plaintiffs contend that their exercise of section 2030.230 is proper and that, consistent with its response, Plaintiffs will provide, concurrent with their production of documents which is currently in progress, identification of documents from which responsive information to the interrogatories may be derived. This strikes the Court as an issue capable of informal resolution between the parties.

Finally, Federal contends that Plaintiffs have failed to provide agreed-upon supplemental responses and code-compliant verifications. (Mem., 14:13-15:9.) Plaintiffs acknowledge their agreement to provide amended verifications. This strikes the Court as a matter the parties should be able to work out informally.

Based on the foregoing, the parties are ordered to engage in additional meet and confer efforts. The parties are directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties’ meet and confer efforts.

D. DISCOVERY REFEREE

The Court is becoming concerned regarding the number of the discovery disputes and scope of issues in this matter, as well as counsel's pattern of failing to engage in meaningful meet and confer or to reach informal resolutions thereon. This is the third motion relating to discovery set for hearing in the last 40 days. The parties' consistently reference, through their briefs, separate federal litigation between them related to a previous fire when arguing in support of or in opposition to a party's respective entitlement to certain materials and information. The present motion requires review of a voluminous number of documents. There are 57 discovery requests at issue. The moving and opposing papers include separate statements consisting of a combined 240 pages and declarations consisting of 733 pages. Although resolution of the legal issues underlying the discovery requests are not complex, unsettled, or matters of first impression, limited judicial resources make these discovery inquiries inordinately time-consuming. (*Id.* at 106.) Napa County Superior Court is a small court consisting of seven judges. The civil department consists of two judges, one of whom is recused in this matter. In addition to the present motion, issues raised at the July 21, 2026 hearing on Federal's previous discovery motion, including Plaintiffs' counsel's representations regarding the amount of time that code-compliant supplemental responses might reasonably take, does not give the Court confidence that the present string of discovery disputes is the last that may arise between the parties.

Where the parties do not consent, section 639 permits the Court to appoint a Discovery Referee upon a finding that "the exceptional circumstances of the particular case require the appointment." (Rules of Court, Rule 3.920.) Pursuant to the holding in *Taggares v. Super. Ct.* (1998) 62 Cal.App.4th 94, a trial court must find the majority of the following factors when considering reference in a discovery context: "(1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming". (*Id.* at 105.)

As noted above, this motion is one in a continuum of many and there appear to be multiple issues involved. While the Court is not prepared to appoint a discovery referee at this juncture, counsel are urged to consider whether their current approach to discovery is in the best interest of the parties.

Based on the foregoing, the parties are encouraged to meet and confer regarding the appointment of a discovery referee pursuant to section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

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JPMorgan Chase Bank N.A. v. Deborah L Paniagua

25CV001227

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.